

State-specific security deposit recovery guide with demand letter templates and small claims court steps — Action Checklist

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KNOW YOUR LEGAL LEVERAGE

- ☐ **Find Your State's Deadline:** Look up your state's security deposit statute online by searching "[Your State] security deposit statute" because the return deadline varies from 14 to 45 days depending on where you live, and knowing yours gives you a clear deadline to work backward from.
- ☐ **Identify Your State's Penalty:** Determine what penalty applies when your landlord misses the deadline by checking your state law because approximately two-thirds of states award full deposit return plus additional damages when landlords fail to comply.
- ☐ **Document Key Dates:** Write down the exact date you provided your forwarding address to your landlord and the date you moved out because the deadline clock starts from when you give your forwarding address, not when you move out.
- ☐ **Count the Days:** Calculate how many days have passed since you provided your forwarding address because landlords in most states have a specific window ranging from 14 to 45 days to return your deposit or send itemized deductions.

DOCUMENT YOUR CLAIM

- ☐ **Gather Lease Documentation:** Locate your signed lease agreement and any written communications from your landlord because these documents establish the original deposit amount and your rights under your specific state law.
 - ☐ **Compile Photo Evidence:** Organize all move-in and move-out photos of the rental unit because visual evidence of the property's condition supports your claim that damages either existed before tenancy or were not caused during your occupancy.
 - ☐ **Calculate Deposit Amount:** Use your lease to identify the original security deposit amount and add any interest owed if your state requires it because you need an exact figure to demand from your landlord.
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- **Create a Reference Card:** Write down your state's deadline, required delivery method, itemization requirements, and penalty structure in one accessible document because you'll need to reference this information repeatedly when communicating with your landlord and potentially the court.

TAKE ACTION TO RECOVER

- **Send a Demand Letter:** Write and send a formal demand letter to your landlord stating the full amount owed and citing your state's specific statute because a written demand often resolves disputes without court involvement and creates a documented record.
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- **Document All Communication:** Keep records of every email, letter, and phone call with your landlord including dates and what was discussed because clear documentation strengthens your position if the matter goes to small claims court.
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- **File in Small Claims Court:** Prepare and file a small claims court claim using your documented evidence and calculations because small claims court is designed for cases like this with no lawyers required and typically handles disputes under \$5,000.
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- **Request Statutory Damages:** When filing your claim, ask for any additional damages available under your state law because landlords who missed deadlines often owe not just the deposit but also penalty amounts that can double or triple what you recover.
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Companion to the full guide in your Lemon Squeezy library — check off each item as you complete it.